

STATE OF NEW MEXICO
COUNTY OF DOÑA ANA
THIRD JUDICIAL DISTRICT COURT

[PETITIONER NAME],
Petitioner,

v.

CHRISTOPHER ARTHUR DOMINGUEZ,
Respondent.

Case No: M-14-VM-202600230

RESPONDENT'S VERIFIED RESPONSE TO PETITION FOR ORDER OF PROTECTION

COMES NOW the Respondent, Christopher Arthur Dominguez, appearing pro se, and respectfully submits this Verified Response to the Petition for Order of Protection. Respondent states as follows:

I. INTRODUCTION

This matter arises from an isolated incident that has been inaccurately characterized in the Petition. Respondent denies that his conduct constituted domestic abuse as defined under New Mexico law and asserts that his actions were limited, situational, and defensive in nature.

II. GENERAL DENIAL OF ALLEGATIONS

Respondent denies each and every allegation contained in the Petition that asserts:

- Intent to harm
- Threatening conduct
- Abusive or violent behavior

Respondent specifically denies that he engaged in any conduct that would justify the issuance of an Order of Protection under the Family Violence Protection Act.

III. FACTUAL BACKGROUND AND CONTEXT

On or about the date referenced in the Petition, Respondent was present at a location where an interaction occurred between himself and the Petitioner.

During this interaction, Respondent became aware of circumstances involving potential damage to his personal property. Respondent's actions were limited to addressing and preventing further damage to that property.

At no time did Respondent:

- initiate physical violence;
- intend to cause bodily harm;
- engage in conduct designed to threaten or intimidate.

The interaction was brief, situational, and reactive. The Petition omits critical context and presents a one-sided account that does not accurately reflect the events as they occurred.

IV. NATURE OF RESPONDENT'S CONDUCT

Respondent's conduct, when viewed objectively and in full context, was:

- Defensive in nature;
- Proportionate to the situation;
- Limited in duration and scope;
- Focused on preventing property damage;
- Not intended to escalate conflict.

Any interpretation of Respondent's actions as abusive or violent is a mischaracterization of a situational and reactive response.

V. LACK OF LEGAL BASIS FOR PROTECTIVE ORDER

Under New Mexico law, an Order of Protection is appropriate only where there is a credible basis to believe that domestic abuse has occurred or is likely to occur.

In this case:

1. There is no ongoing threat of harm;
2. There was no intent to commit domestic abuse;
3. The incident was isolated and situational;
4. The Petition lacks sufficient factual basis to support the requested relief.

Accordingly, the statutory threshold for issuance of an Order of Protection has not been met.

VI. RESPONDENT'S POSITION REGARDING COURT CONDITIONS

Respondent understands the seriousness of court-imposed conditions and affirms the following:

- He will comply with all court orders currently in place;
- He has complied with all conditions of release;
- He has no intention of violating any no-contact provisions;
- He will appear at all scheduled hearings.

Respondent presents himself as cooperative, compliant, and respectful of the Court's authority.

VII. REQUEST FOR RELIEF

WHEREFORE, Respondent respectfully requests that this Court:

- A. DENY the Petition for Order of Protection in its entirety; or in the alternative,
 - B. Set this matter for a full evidentiary hearing so that all relevant facts may be presented and evaluated.
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VIII. VERIFICATION

I, Christopher Arthur Dominguez, declare under penalty of perjury that the foregoing statements are true and correct to the best of my knowledge and belief.

Respectfully submitted,

Christopher Arthur Dominguez
P.O. Box 2300
Anthony, New Mexico 88021
(915) 850-6554

Date: ____

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of this Response was provided to the Petitioner in accordance with applicable rules of service.

Christopher Arthur Dominguez

Date: ____